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JUDGMENT SHEET

LAHORE HIGH COURT

MULTAN BENCH MULTAN

JUDICIAL DEPARTMENT

W.P. No.12039 of 2025

Afzal Bibi Vs. Addl. District Judge, etc.

J U D G M E N T

Date of Hearing:	16.02.2026
Petitioner by:	Rana Muhammad Nazir Saeed, Advocate.
Respondent No.3 by:	Mr. Umar Hayat Jatt, Advocate.

Anwaar Hussain, J. A short but important legal question is involved in the present matter. In a suit instituted by the petitioner, she was held entitled, *vide* judgment and decree dated 20.11.2024 passed by the Family Court, to recover her dowry articles or, in the alternative, their value assessed at Rs.200,000/-. The decree was not assailed further and thus attained finality. During the execution proceedings, learned counsel for respondent No.3 (“**the respondent**”) entered appearance, on 19.04.2025, and made a statement before the Executing Court that the dowry articles were available with the respondent and could be lifted by the petitioner—decree-holder. Acting upon this statement, the Executing Court appointed a Bailiff, upon payment of Rs.10,000/- as fee, which was paid by the petitioner. However, when the Bailiff visited the residence of the respondent, the Bailiff was obstructed; the respondent’s father refused even to permit inspection of the dowry articles. Thereafter, instead of complying with the decree in its true spirit, the respondent tendered a sum of Rs.70,000/- to the Executing Court while asserting that he intended to satisfy the decree by payment of the alternate value rather than by return of the dowry articles. Through order dated 12.07.2025, the

Executing Court allowed this course to continue and allowed the deposit of Rs.70,000/-, and the said order was maintained in revision, through impugned order dated 09.09.2025.

2. Learned counsel for the petitioner contends that judgment and decree dated 20.11.2024 passed by the Family Court presently under realization clearly holds the petitioner entitled to recover the dowry articles and payment of amount in lieu thereof was ordered only in case of failure to return the dowry articles, therefore, by passing the impugned orders both the Courts below erred in law by going behind the decree.

3. Conversely, learned counsel for the respondent could neither dispute finality of the decree nor deny the statement recorded by him before the Executing Court offering return of the dowry articles and contends that the respondent is willing to pay the balance Rs.130,000/- within such time this Court directs. His submission, in essence, was confined to the respondent's willingness to pay the alternate value of the dowry articles and not to return the dowry articles.

4. Arguments heard. Record perused.

5. Following legal question arises for determination by this Court:

Whether, under a decree where the wife is granted dowry articles or in the alternative, their monetary value, the judgment debtor can refuse to return the specific articles and insist upon payment of decreed value and/or the Executing Court can compel the decree holder to accept the alternate value?

6. This case reflects a recurring concern in family litigation. Decrees relating to the dowry articles often attain finality, yet their execution is frustrated through shifting positions by the judgment debtor(s), and unwarranted procedural indulgence and concessions by the Executing Court(s). When a decree directs return of the specific dowry articles or,

in the alternative, their value, the alternate relief cannot be treated as an option available to the judgment-debtor. Once a decree is passed for recovery of dowry articles or, in the alternative, their assessed value, the right of election squarely vests in the decree-holder to decide whether to seek delivery of the specified dowry articles or to realize their alternate monetary value. More so, when the judgment debtor, appears before the Executing Court and voluntarily states that the articles are available, hence, such judgment debtor cannot subsequently obstruct recovery and seek to convert the decree into a monetary liability payable at his convenience.

7. The Family Courts Act, 1964 (“**the Act**”), empowers the Family Courts to devise their own procedure in order to ensure expeditious and effective settlement of disputes. That flexibility envisaged by the legislature necessarily extends to the execution proceedings arising out of the family decrees. Execution in such matters must advance the purpose of the law—namely, meaningful and timely relief—rather than reduce the decree to a negotiable instrument subject to delay. Executing Court(s) should not lose sight of this legal position. Suffice to observe that the dowry articles are not merely items of property; they represent belongings entrusted at the time of marriage, often bearing financial as well as personal significance for the decree holder. Permitting obstruction in their timely recovery, after a clear judicial determination, undermines both the authority of the Court and the object of the Act. At this juncture, it is necessary to observe that decrees passed by Family Courts are enforceable commands of law and once a family decree attains finality, execution must be effective, prompt, and insulated from the dilatory tactics. The alternate valuation of dowry articles cannot be converted into a strategic device at the convenience of the judgment-debtor. The Executing Courts possess ample authority to impose costs and adopt coercive measures where obstruction is evident, and such powers must be exercised firmly to

ensure that the decrees in family matters do not become casualties of the procedural manipulation.

8. In view of the above discussion, the legal question is answered in the terms that neither does the judgment-debtor possess any option to compel acceptance of the alternate value in substitution of the articles, nor does the Executing Court enjoy jurisdiction to force such substitution upon the decree-holder.

9. However, the peculiar facts of the present case require a practical and justice-oriented approach. The decree was passed in November 2024; and now it is February 2026. Setting aside the impugned orders and directing renewed attempts for physical recovery of the dowry articles at this stage is likely to reopen factual controversy regarding their condition, deterioration, usability, or valuation, thereby exposing the petitioner—decree-holder to further round(s) of litigation. The record already demonstrates obstruction on part of the respondent when the Bailiff was deputed. Justice in such circumstances lies not in perpetuating process, but in securing finality. Accordingly, while maintaining the orders of satisfaction of the decree through payment of Rs.200,000/-, this Court holds that the respondent's conduct—first offering return of the articles and thereafter frustrating execution—constitutes clear abuse of process of law, which cannot be countenanced. The respondent is, therefore, burdened with special costs of Rs.100,000/- for having obstructed the execution and caused unnecessary delay and hardship to the petitioner-decree holder.

10. The respondent shall deposit the remaining Rs.130,000/- of the alternate value of dowry articles along with Rs.100,000/- and return Rs.10,000/- (bailiff fee) within 15 days before the Executing Court. In case of failure to comply with the direction of this Court within the stipulated period of time, the Executing Court shall take all necessary steps, including attachment of property of the respondent, to recover

the balance decretal amount of Rs.130,000/-, special costs of Rs.100,000/- imposed by this Court and Rs.10,000/- (bailiff fee).

11. **Disposed of** in above terms

(ANWAAR HUSSAIN)
JUDGE

Approved for reporting

Judge

Maqsood